

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

SAMSUNG ELECTRONICS AMERICA, INC.,

Complainant,

v.

COSCO SHIPPING LINES CO. LTD.

Respondent and Third-Party Complainant,

v.

SAMSUNG ELECTRONICS COMPANY, LTD., SAMSUNG SDS GLOBAL SCL ASIA
PACIFIC PTE LTD, AND SAMSUNG ELECTRONICS LOGITECH COMPANY, LIMITED

Third-Party Respondents.

**THIRD-PARTY RESPONDENT SAMSUNG SDS ASIA PACIFIC PTE LTD. S/H/A
SAMSUNG SDS GLOBAL SCL ASIA PACIFIC PTE LTD.'S MOTION TO QUASH**

HOHENSTEIN & PARKINSON, LLP
James H. Hohenstein
Sheryl K. Parkinson
385 South End Avenue, #5K
New York, NY 10280
Telephone: (917) 873-2528
jim.hohenstein@hplawny.com
sheryl.parkinson@hplawny.com

*Counsel to Samsung SDS Asia Pacific
Pte Ltd. s/h/a Samsung SDS Global SCL Asia
Pacific Pte Ltd.*

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PRELIMINARY STATEMENT

Samsung SDS Asia Pacific Pte Ltd. s/h/a Samsung SDS Global SCL Asia Pacific Pte Ltd. (“SDSAP”) hereby moves to quash the subpoena (“Subpoena”) served on it by COSCO Shipping Lines Co. Ltd. (“COSCO”) on November 18, 2025.¹ In support of this motion, SDSAP states the following:

BACKGROUND

The underlying dispute in this matter stems from a complaint filed by Samsung Electronics America, Inc. (“SEA”) against COSCO alleging violations of the Shipping Act of 1984 (Doc. No. 26: Amended Complaint). COSCO has, in turn, filed a counterclaim against SEA (Doc. No. 30) and a Third-Party Complaint against Samsung Electronics Co., Ltd. (“SEC”), SDSAP and Samsung Electronics Logitech Co., Ltd. (“Logitech”)(Doc. No. 31).

SDSAP has filed a motion to dismiss the Third-Party Complaint for failure to state a claim on which relief can be granted pursuant to Fed. R. Civ. P. 12(b)(6). The motion to dismiss has been fully briefed (Doc. Nos. 65, 69 and 71) and is currently *sub judice*. Notwithstanding the pendency of that motion, SDSAP has received the Subpoena for Documents initiated by COSCO seeking the production of numerous identified and unidentified documents and communications (defined in the broadest possible terms, *see* Exhibit A, Subpoena Definitions ¶¶ 11-12, at 2-4) having anything to do with identified and unidentified alleged service contracts since January 1, 2020.²

¹ For ease of reference a copy of the Subpoena is attached hereto as Exhibit A. Service on SDSAP in Singapore was made pursuant to the Convention on the Taking of Evidence Abroad in Civil or Commercial Matters, March 18, 1970, T.I.A.S. No. 7444, 23 U.S.T. 2555 (*see* Doc. No. 79).

² A similar subpoena was served on October 1, 2025, on SDS America, Inc., a non-party to this matter. A motion to quash that subpoena was filed on October 15, 2025 (Doc. No. 81), replied to on October 21, 2025 (Doc. No. 82) and is *sub judice*.

In view of the prematurity and inappropriateness of the Subpoena, undersigned counsel for SDSAP, by e-mail on November 21, 2025, requested counsel for COSCO that it be withdrawn. By return e-mail on November 21, 2025, counsel for COSCO advised that it would not withdraw the Subpoena.³

LEGAL STANDARD

I. SDSAP's Motion to Quash is Timely Filed.

Under the Commission Rules, a subpoena may be issued for the attendance of witnesses or the production of evidence. 46 C.F.R. § 502.131. The Commission Rules also provide for motions to quash such subpoenas:

Except when issued at a hearing, or in connection with taking a deposition, within ten (10) days after service of a subpoena for attendance of a witness or a subpoena for production of evidence, but in any event at or before the time specified in the subpoena for compliance therewith, the person to whom the subpoena is directed may, by motion with notice to the party requesting the subpoena, petition the presiding officer to quash or modify the subpoena.

See 46 C.F.R. § 502.132(a). SDSAP's motion is timely filed.

II. The Subpoena for Documents is Premature under Commission Rules as well as an Inappropriate Use of the Subpoena Procedure.

Commission Rules governing discovery are found at 46 C.F.R. § 502.141, which provides that the commencement for all discovery – requests and responses thereto – stems from the date of service of the Respondent's Answer to the Complaint. Third-Party Respondent SDSAP has not yet answered the Complaint, so the time to begin discovery has not yet started. Accordingly, the Subpoena is premature and must be quashed.

Moreover, the Presiding Officer has previously addressed the issue of discovery vis-à-vis

³ A copy of the e-mail exchange between counsel is attached hereto as Exhibit B.

the Third-Party Respondents in the Memorandum Order of August 13, 2025 (Doc. 66)(“Memorandum Order”). As stated in the Memorandum Order:

During the conference, COSCO stated that it would like to coordinate discovery with the Third-Party Respondents, in addition to SEA. The two Third-Party Respondents [SEC and SDSAP] who have been served the Third-Party Complaint via the Hague Convention procedures have filed motions to dismiss. Until those motions have been decided (the second one [SDSAP’s] was only filed on August 11, 2025, and no response has been received), discovery is to continue between the parties to the amended complaint, SEA and COSCO.

Id. at 2. The Presiding Officer’s direction is entirely consistent with the FMC rules concerning discovery. Again, the Subpoena is premature and must be quashed.

In addition, the use of the Commission’s subpoena powers is not appropriate in this matter as the Subpoena is clearly being used as a discovery device. COSCO’s Subpoena ignores the simple fact that SDSAP, having been served the Third-Party Complaint, is a party to these proceedings. COSCO now seeks to treat SDSAP as a “non-party” by way of using a subpoena as a device to seek documents, as opposed to a request for the production of documents served on SDSAP’s counsel in the normal course of discovery. SDSAP submits this is an improper use of the Commission Rules governing the use of subpoenas.

ARGUMENT

I. FMC Rules do not Authorize Pre-Answer Discovery under these Circumstances.

46 C.F.R. § 502.141 sets out the Rules regarding discovery in FMC proceedings. Pursuant to that Rule, the date upon which discovery may begin is determined by the date of the Respondent’s (or Third-Party Respondent’s) answer to a Complaint. This includes: initial disclosures to take place within 7 days *after* the answer is filed, § 502.141(b)); the parties shall confer and propose a discovery schedule within 15 days *after* the answer is filed, § 502.141(h)); and the completion of discovery within 150 days *after* the answer is filed, § 502.141(g). Since

SDSAP has not yet filed an answer, there is no date upon which discovery may begin.⁴

The Memorandum Order tracks and is consistent with the Rule. Although COSCO states (in its e-mail, Exhibit B) that the Memorandum Order does not preclude the Subpoena, asserting that the Memorandum Order was not intended to bar discovery on SEA's claims, COSCO is mistaken. The plain language of the Memorandum Order is clear: "Until those motions [to dismiss] have been decided...discovery is to continue *between the parties to the amended complaint, SEA and COSCO.*" Memorandum Order at 2, emphasis added. COSCO's offhand statement that the Third Parties, including SDSAP, are nonetheless "obligated" (Exhibit B) to provide documents relevant to SEA's action against COSCO, not only ignores the Presiding Officer's direction, but also ignores the requirements of compliance with specific procedural rules, including properly timed, appropriate discovery requests and limitations such as relevance, privilege, undue duplication and so on.⁵

II. The Purpose of COSCO's Subpoena is for Discovery and is a Subterfuge.

Even a cursory review of the Subpoena establishes that the scope of the document demands is wide-ranging and comprehensive. *See generally* Exhibit A.

⁴ SDS AP recognizes that the Rule does not "preclude the parties from conducting discovery and conferring at an earlier date." However, it is clear from the language that this is contingent on the parties' voluntary agreement. COSCO has not asked, and SDSAP does not agree to, any such earlier discovery, as it submits that any discovery prior to the resolution of the Motion to Dismiss is premature and inappropriate.

⁵ Analogous federal court decisions provide unequivocal support for SDSAP's position on the prematurity of the Subpoena as a discovery device. *See, e.g., American Action Network v. Cater America, LLC*, 983 F. Supp. 2d 112, 127 (D.D.C. 2013) ("Because the parties have not yet held a Rule 26(f) conference, [Plaintiff]'s discovery requests were premature."); *Fontenot v. Granite State Ins. Co.*, No. 08 CV 1296, 2008 WL 4822283, *2 (W.D. La. Nov. 3, 2008) ("Because there had not been a Rule 26(f) conference of the parties and the parties had not stipulated to engage in discovery prior to the conference, [Plaintiff]'s discovery was premature."); *Arias v. Dyncorp*, 517 F. Supp. 2d 221, 230 (D.D.C. 2007) ("Because discovery may not be demanded before the Rule 26(f) conference, a motion to compel filed before that conference is premature...").

Given the scope of the document demands in the Subpoena, it must be considered a tool of discovery. *See Mortgage Info. Svcs. v. Kitchens*, 210 F.R.D. 562, 566 (W.D.N.C. 2002)(“After reviewing the relevant case law on both sides of the issue, the Court adopts the rule followed by the majority of jurisdictions and holds that a Rule 45 subpoena does in fact constitute discovery.”)(citations omitted); *Hasbro, Inc. v. Serafino*, 168 F.R.D. 99, 101 (D. Mass. 1996)(subpoena served on a party must be treated as discovery from that party).⁶

Moreover, there is authority for the position that where the discovery is sought from a party to the proceeding, it is not permissible to use a subpoena as opposed to a request for the production of documents. *See U.S. Bank Nat’l Assn. v. Friedrichs*, No. 12cv2373-GPC(KSC), 2013 WL 371987, *4 n.2 (S.D. Calif. Jan. 17, 2013)(“When a party to the action is simply seeking production of documents from another party, the requesting party should proceed under Rule 34, not with a subpoena pursuant to Rule 45.”); *Hasbro*, 168 F.R.D. at 100 (“[I]t is evident to this Court that Rule 45, to the extent it concerns discovery, is still directed at non-parties and that Rule 34 governs the discovery of documents in the possession or control of the parties themselves.”).⁷

Nevertheless, a review of the available precedent indicates that the holdings in *Friedrichs* and *Hasbro* represent a minority view. *See United States v. 2121 Celeste Road SW, Albuquerque, New Mexico*, 307 F.R.D. 572, 588 (D. N.M. 2015)(“A majority of district courts have held, however, that a subpoena may be served on another party so long as it is not used to circumvent

⁶ Exceptions to this general rule, *inter alia*, include the use of a subpoena to “secure the production at trial of original documents previously disclosed by discovery.” *Rice v. United States*, 164 F.R.D. 556, 558 n.1 (N.D. Okla. 1995). Such an exception certainly does not apply here.

⁷ It should be noted that the Commission’s Rule concerning subpoenas states that a subpoena shall be issued “without notice to any party.” 46 C.F.R. § 502.131. This phrase portends that the intent of the rule is that subpoenas issued by FMC Administrative Law Judges are to be directed to non-parties to the FMC proceeding.

rule 34 or the other discovery rules.”)(citations omitted). Similarly:

The text of Rule 34(c) ...does not necessitate the conclusion reached by the magistrate judge in *Hasbro*. Furthermore, the Court perceives no internal inconsistencies between Rules 34 and 45 because, as other courts have noted, the two rules serve fundamentally different purposes. *See Badman [v. Stark]*, 139 F.R.D. [601,]...603 [(M.D. Pa. 1991)](noting that ‘Rule 34 is invoked merely to inspect documents prior to trial,’ whereas ‘Rule 45 is utilized to compel production of documents for use at depositions or the trial”).

Mortgage Info. Svcs., 210 F.R.D. at 565.

It is common ground that Fed. R. Civ. P. 34 and 45 do not apply to this proceeding. That said, the Commission’s Rules concerning subpoenas (46 C.F.R. § 502.131) and the production of documents (46 C.F.R. § 502.146) are certainly analogous to Fed. R. Civ. P. 45 and 34.⁸ The documents COSCO seeks clearly must be produced, if at all, in accordance with 46 C.F.R. § 502.146 and according to the usual course of proceedings.

COSCO clearly is attempting to use the Subpoena as a discovery device to circumvent the discovery procedures set forth in detail in the Commission’s Rules. Such a subterfuge must not be allowed.

III. The Procedural Posture of the Case does not warrant Commencement of Discovery against SDSAP Now.

SDSAP’s Motion to Dismiss is pending before the Presiding Office (as is a similar motion filed by Third-Party Respondent, SEC (Doc. Nos. 65, 72 and 73; the remaining Third-Party Respondent, Logitech, filed its Motion to Dismiss on November 14, 2025 (Doc. No. 84)). The

⁸ In support of this precept, SDSAP submits that a subpoena for the attendance of witnesses or the production of evidence under 46 C.F.R. § 501.131 is distinguishable from a request for production of documents under 46 C.F.R. § 502.146. The former posits witnesses and evidence at a hearing, and thus may be subject to a showing of relevance and reasonable scope, whereas the latter, addressed to a party, anticipates broad requests for any nonprivileged relevant matter which may or may not be admissible at a hearing (although still subject to a showing that the request is not unduly burdensome, duplicative or cumulative).

Subpoena subverts one of the functions of a motion to dismiss: “[O]ne purpose of challenging the sufficiency of a complaint at the pleading stage is to shield a defendant from facing the burden of expensive and lengthy discovery.” *American Action Network*, 983 F. Supp. 2d at 127 n.8 (citing *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 558-59 (2007)). That purpose certainly applies here.

Resolution of this motion will necessarily affect discovery procedures going forward. If SDSAP’s motion is granted, it will no longer be a party and will certainly not, in the absence of a properly drafted subpoena, be obligated to provide any discovery. Whereas, as a practical matter, if SDSAP remains a party, then the FMC Rules regarding initial disclosures, the parties’ duty to confer, interrogatories, the production of documents all may serve to lessen or expedite discovery in the first place.

There can be no prejudice to COSCO by quashing this Subpoena. It is currently in the document exchange phase with SEA. This Subpoena, particularly given its breadth, is simply an attempt to do an end run around the Rules and the specific direction of the Memorandum Order.

CONCLUSION

For the above reasons, SDSAP respectfully asks that the Subpoena be quashed in its entirety as premature and inappropriate.⁹

Dated: November 28, 2025

Respectfully submitted,

HOHENSTEIN & PARKINSON, LLP

By: /s/ James H. Hohenstein

James H. Hohenstein

Sheryl K. Parkinson

385 South End Avenue, #5K

New York, NY 10280

Telephone: (917) 873-2528

jim.hohenstein@hplawnyc.com

sheryl.parkinson@hplawnyc.com

Counsel to Samsung SDS Asia Pacific

*Pte Ltd. s/h/a Samsung SDS Global SCL Asia
Pacific Pte Ltd.*

⁹ Moreover, SDSAP reserves all its rights to object to the specifics of the Subpoena for Documents or any similar discovery requests if SDSAP's Motion to Quash is denied. Further, if the Presiding Officer declines to grant this Motion to Quash in whole or in part, SDSAP reserves the right to file a motion for a protective order pursuant to 46 C.F.R. § 502.141(j) to protect against the public disclosure of any sensitive or confidential information it may be required to produce.

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document as well as the accompanying exhibits by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Linda S. Harris Crovella – *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
3. Holland & Knight LLP
Counsel for Complainant
 - a. Christopher R. Nolan
chris.nolan@hklaw.com
 - b. Gerald A. Morrissey III
gerald.morrissey@hklaw.com
 - c. Kristine O. Little
kristine.little@hklaw.com
 - d. Allison N. Skopec
allison.skopec@hklaw.com
4. Jeffrey/Fenneman Law + Strategy, PLLC
Counsel for Respondent and Third-Party Complainant
 - a. Eric C. Jeffrey
EJeffrey@JeffreyFenneman.com
 - b. Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
 - c. Kaya Massey
KMasse@JeffreyFenneman.com
 - d. Nicholas Webb
NWebb@JeffreyFenneman.com
5. Nixon Peabody LLP
Counsel for Respondent and Third-Party Complainant
 - a. Brian J. Whittaker
bwhittaker@nixonpeabody.com
 - b. Gordon L. Lang
glang@nixonpeabody.com
 - c. Martha A. Medina
mmedina@nixonpeabody.com

Dated: November 28, 2025

By: /s/ James H. Hohenstein

James H. Hohenstein
Hohenstein & Parkinson, LLP